

FORD CONSTRUCTION CO. v. GOLD CREEK HOMES et al
21CV45384

**PLAINTIFF'S MOTION TO LIFT STAY, AFFIRM
ARBITRATION AWARD, AND ENTER JUDGMENT**

This is a contract dispute involving construction services. The civil action was stayed, and the parties ordered to resolve their dispute pursuant to a written contractual agreement to arbitrate all disputes. The parties completed that arbitration, and a *final* award has been issued. Plaintiff prevailed. Defendant has not filed any opposition to the pending motion.

Pursuant to CCP §1281.4, once a dispute is referred to contractual arbitration, the case is generally stayed “until an arbitration is had in accordance with the order to arbitrate or until such earlier time as the court specifies.” Since the arbitration is now complete, plaintiff’s request to lift the stay is GRANTED.

Pursuant to CCP §1286, once a motion to confirm an arbitration award is duly served and filed, “the court shall confirm the award as made unless in accordance with this chapter it corrects the award and confirms it as corrected, vacates the award or dismisses the proceeding.” The motion has been duly served and filed (see CCP §§ 1290.2, 1290.4), and there has been no response (see CCP §1290) or alternate motion to correct/vacate the award (CCP §1285.8). As such, this court is mandated to GRANT the motion to confirm the arbitration award. (See, *e.g.*, *Cinel v. Christopher* (2012) 203 Cal.App.4th 759, 765; *Law Offices of David S. Karton v. Segreto* (2009) 176 Cal.App.4th 1, 8; *Louise Gardens of Encino Homeowners' Assn., Inc. v. Truck Ins. Exchange, Inc.* (2000) 82 Cal.App.4th 648, 658.)

Pursuant to CCP §1287.4, “if an award is confirmed, judgment shall be entered in conformity therewith. The judgment so entered has the same force and effect as, and is subject to all the provisions of law relating to, a judgment in a civil action of the same jurisdictional classification; and it may be enforced like any other judgment of the court in which it is entered, in an action of the same jurisdictional classification.” As such, plaintiff’s motion to enter judgment is likewise GRANTED.

The Clerk shall provide notice of this Ruling to the parties forthwith. Plaintiff to prepare formal Judgment pursuant to Rule of Court 3.1312 in conformity with these rulings.